

March 23, 2026
Dept. 9
Probate Tentative Rulings

6.	25PR0351	ESTATE OF WOOD
Succession to Real Property		

A Petition was filed by Quenton Hamlin requesting an Order determining the succession of real property of decedent Sally Ann Wood, who died intestate on June 6, 2025. Petitioner is decedent's grandchild.

Carolyn Wood, decedent's step-child, filed an Objection to the Petition on the grounds that she is a beneficiary of decedent's lost or destroyed Will that distributed decedent's estate 50 percent to decedent's issue and 50 percent to Objector and her sister.

Objector asserts that in 1991, decedent and her husband, each of whom had children from prior relationships, executed mutual Wills "to treat their respective families equally upon the death of the survivor." Objector points to the still-extant Will of decedent's husband that contains the following provision: "I have entered into a contract with my wife limiting in certain respects my power to revoke or to amend this Will after his [sic] death." The Objection references an attached Will as Exhibit A, but there is no Exhibit attached to the Objection. Objector asserts that this reflects an agreement between the spouses that their common estate would be divided equally between the children of each of them.

Objector asserts that Petitioner informed her after decedent's death that he had in his possession a codicil of decedent's Will, further evidencing the fact that there is an underlying Will of decedent. Accordingly, Objector asserts that the Petition is improper because the decedent did not, as the Petition alleges, die intestate, and because the Petition did not acknowledge the existence of any beneficiary of decedent's estate or provide notice to Objector.

The Petition is brought pursuant to Probate Code Sections 13150, et seq., which may be used as in this case where no probate is open on the estate. Probate Code Section 13151. The Petition meets the requirements of Probate Code Section 13152 as to the contents of the Petition, except that if there is a Will that names Objector and her sister as devisee, the Petition does not reference the Will or any heir of decedent, and did not provide notice to any person other than Petitioner. Objector does not assert the right to inherit from a step-parent under Probate Code Section 6454, which allows for intestate succession of stepchildren but only if it is established that the decedent would have adopted the step-child but for a legal impediment.

Objector requests the Court to deny the Petition and expresses the intention to file for probate of a lost Will.

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At the hearing held on February 9, 2026, the Court continued the matter at the request of the parties to give them an opportunity to meet and confer. Nothing new has been filed since the previous hearing.

TENTATIVE RULING #6: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 23, 2026, IN DEPARTMENT NINE.